

Here, the Court finds that parties are in genuine dispute over material facts. The Court does not find that Rancho makes a showing that the plaintiff failed to comply with discovery and that the failure was willful pursuant to section 2030.030. The easement of the gate and its codes are in dispute. As for the plaintiffs' request for sanctions under section 1987.1, the Court does not find that the motion was made in bad faith or without substantial justification.

V. CONCLUSION

Based on the foregoing, and in light of the court's ruling in Rancho's motion to intervene, that was granted, the court finds the motion for protective order as MOOT. The request for sanctions by Rancho and plaintiffs are DENIED. Moving party to prepare the formal Order.

Calendar Line # 7

Case Name Cavalry Spv I, Llc vs Gisela Rosas-Deciga

Case No. 25CV457476

Motion: Admissions Deemed Admitted

Before the court is Plaintiff Cavalry Spv I, Llc's ("Cavalry") motion for requests for admissions ("RFA") to be deemed admitted against Defendant Giesela Rosas-Deciga that was filed on September 30, 2025. The motion was accompanied by a proof of service indicating mail service on September 30, 2025.

No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 8, 2026.

I. BACKGROUND

The Court has carefully reviewed Plaintiff's moving papers including, notice of motion (totaling 2 pages), memorandum of points and authorities (totaling 3 pages), Declaration of Nordin Dhaliwal in support of Plaintiff's motion and attached Exhibits A-C (totaling 26 pages); proof of service, (totaling 2 pages); and the pleadings.

II. LEGAL STANDARD

Pursuant to California Code of Civil Procedure sections 2033.280:

"If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

- (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.
- (b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).
- (c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280).

III. ANALYSIS

On June 27, 2025, Plaintiff served Defendant Rosas-Deciga with RFA, Set One, that contained 11 RFA on the via mail delivery (Declaration of Dhaliwal and Exhibit A). Per Plaintiff, responses were due on August 1, 2025 (*Id.*). Plaintiff did not receive any responses on that date and has not received responses as of filing the motion. The Court was not provided with any further updates on responses prior to this hearing date. On September 30, 2025, Plaintiffs filed this motion to deem RFA admitted.

Absent substantial compliance *prior* to the hearing date, the defendant is entitled to an order deeming the truth of the matter specified and requests that all RFA is deemed admitted. Here, Defendant has not served any responses. Verified responses were due over a year ago, on August 1, 2025. No discussions on extensions or substantial compliance prior to the hearing was provided.

Per Code of Civil Procedure section 1005(b) opposition papers were due on May 8, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2033.280(c), the Court *shall* impose monetary sanctions for failure to timely respond to requests for admission unless the party acted with substantial justification, or the circumstances render imposition of sanctions unjust. The Court must impose a monetary sanction on the party or attorney whose failure to serve timely Requests for Admission responses necessitated the motion.

Plaintiff does not seek any sanctions. No motion for cost or fees were submitted. The Court will exercise its discretion and not impose sanctions.

V. CONCLUSION

Based on foregoing, Plaintiff's unopposed motion to deem RFA, set one is GRANTED.
Moving party to prepare the formal Order.

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